

PUBLICATIONS DE LA COUR PERMANENTE DE JUSTICE
INTERNATIONALE

SÉRIE A — N° 12

RECUEIL DES ARRÊTS

AFFAIRE RELATIVE A L'USINE
DE CHORZÓW (INDEMNITÉS)

ORDONNANCE DU 21 NOVEMBRE 1927

PUBLICATIONS OF THE PERMANENT COURT
OF INTERNATIONAL JUSTICE.

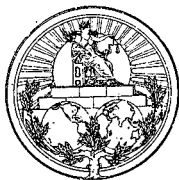
SERIES A.—No. 12

COLLECTION OF JUDGMENTS

CASE CONCERNING THE FACTORY
AT CHORZÓW (INDEMNITIES).

ORDER MADE ON NOVEMBER 21st, 1927

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ORDER

MADE ON NOVEMBER 21st, 1927.

1927.
November 21st.
File E. c. XIII.

TWELFTH (ORDINARY) SESSION

Before :

MM. HUBER, <i>President</i> ,	
LODER, <i>Former President</i> ,	
Lord FINLAY,	}
MM. NYHOLM,	
MOORE,	
ALTAMIRA,	
ODA,	
ANZILOTTI,	}
MM. BEICHMANN,	
NEGULESCO,	

Judges,

Deputy-Judges.

CASE CONCERNING THE FACTORY AT CHORZÓW (INDEMNITIES).

The Government of Germany, represented by Dr. Erich Kaufmann, Professor at Bonn,

Applicant,

versus

The Government of the Polish Republic, represented by Dr. Thadeus Sobolewski, Agent for the Polish Government before the Polish-German Mixed Arbitral Tribunal,

Respondent.

Request by the German Government for the indication of a provisional measure of interim protection.

THE COURT,

Having regard to the Request of the German Government dated October 14th and filed with the Registry of the Court

on November 15th, 1927, to the effect that a provisional measure of interim protection should be indicated in the case concerning the Chorzów factory (indemnities) now pending before the Court ;

Having regard to Article 41 of the Statute and Article 57 of the Rules of Court ;

Having regard to Judgment No. 8 given by the Court on July 26th, 1927 ;

Whereas in the request above mentioned of the German Government it is submitted that, by virtue of the powers conferred upon it under Article 41 of the Statute, the Court should indicate to the Polish Government that it must pay to the German Government, as a provisional measure, the sum of thirty millions of Reichsmarks within one month from the date of the Order sought ;

Whereas the Court, in Judgment No. 8, by which it declared itself to have jurisdiction to give judgment upon the merits in the case in question, has reserved for judgment on the merits the claims formulated in the Application instituting proceedings filed with the Registry of the Court on February 8th, 1927, by the German Government ;

Considering that the request of the German Government cannot be regarded as relating to the indication of measures of interim protection, but as designed to obtain an interim judgment in favour of a part of the claim formulated in the Application above mentioned ;

That, consequently, the request under consideration is not covered by the terms of the provisions of the Statute and Rules cited therein ;

Considering that, in these circumstances, there is no reason to invite the Polish Government to submit observations upon the German Government's request ;

Considering that the Court is entitled, as normally composed, to indicate, should occasion arise, provisional measures of interim protection, without specially obtaining the assistance of national judges ;

THE COURT,

composed as above,

Decides, that effect cannot be given to the request of the German Government dated October 14th, 1927.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this twenty-first day of November, one thousand nine hundred and twenty-seven, in three copies, one of which is to be placed in the archives of the Court, and the others to be forwarded to the Agents of the German and Polish Governments respectively.

(Signed) MAX HUBER,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.
